**Ex Tempore**

SAMUEL LINJESA
versus
LOCAL AUTHORITIES PENSION FUND
and
HONOURABLE JUSTICE CHIVIZHE
and
JUDICIAL SERVICE COMMISSION
and
MINISTER OF JUSTICE, LEGAL AND PARLIAMENTARY AFFAIRS

HIGH COURT OF ZIMBABWE
**DEME AND HOVE JJ**
HARARE, 5 and 9 June 2026

**Opposed Application**

Applicant in person.
*G.M. Nyangwa with T. Nyamhidzi*, for the 1st Respondent
*N. Chiro*, for the 3rd Respondent
No appearance for the 2nd and 4th Respondents.

DEME J: The Applicant approached this court seeking declaratory relief in terms of Section 14 of the High Court Act. The Applicant seeks to challenge the judgments delivered by the second Respondent through a declaratory order. He prays for the relief that the manner in which the second and third Respondents handled his matters before the Labour Court be declared to have violated his rights established in terms of ss 56 and 69 of the Constitution. He also prays for the relief that the matters heard by the Labour Court be remitted to the Labour Court before a different Judge. In particular, the Applicant is seeking the following relief:

> "1. A Declarateur (sic) be and is hereby issued in favour of the Applicant.
>
> 2. It is hereby declared that;

a). the conduct of the 2nd and 3rd Respondents in the handling of Labour Court proceedings in Case Numbers LC/H/REV/51/2016, LC/H/92/2018, LC/H/329/2018 and LC/H/APP/147/2018 and all other cases involving the Applicant was not transparent and lawful and contravened the Applicant's rights to protection of the law and protection of the right to fair hearing as stated in Section 56 (1) & 69 (1) of the Constitution of Zimbabwe.

3. Consequently, it is ordered that all the cases referred to above be remitted back to the Labour Court for hearing before another Judge.

4. That the 3rd Respondent be and is hereby ordered and directed to assign the Determination of Case Numbers LC/H/REV/51/2016, LC/H/92/2018, LC/H/329/2018 and LC/H/APP/147/2018 and all other matters related thereto to another Judge of the Labour Court of Zimbabwe.

5. That 1st Respondent pay (sic) costs of this application."

The application was opposed by the first and third Respondents who raised numerous points *in limine*. Firstly, the first Respondent, in its first point *in limine*, argued that the present application is a contrived review or appeal which flies against the requirements of the declaratory order. In its second point *in limine*, the first Respondent argued that this court does not have jurisdiction to grant the present relief. The third Respondent also raised this point *in limine*. The first Respondent, by way of its third point *in limine*, contended that the matter had prescribed.

The third Respondent, as a further point *in limine*, argued that the Applicant failed to exhaust local remedies. The first and third Respondents also raised an additional point *in limine* to the effect that the relief prayed for is incompetent.

I will start by dealing with the issue of whether or not the relief sought by the Applicant is competent. The first and third Respondents argued that the Applicant cannot seek to challenge the decision of the Labour Court through the declaratory relief. Ms *Nyamidzi* referred the court to the case of *Streamsleigh Investments (Pvt) Ltd* v *Autoband Investments (Pvt) Ltd*[1]. The first Respondent also contended that the relief for remittal of the matters to the Labour Court is incompetent in the absence of the order setting aside such decisions. The first and third Respondents maintained that the Labour Court is now *functus officio*, having definitively resolved the matters. To this end, they argued that the Applicant cannot seek to have the matters reheard by the same court when there are decisions which are extant. The third Respondent argued that the relief calling for the reallocation of the matters to a different Judge by the third Respondent is incompetent as the third Respondent does not allocate matters to Judges. The first

[1] HH55/12

Respondent additionally argued that the relief for a constitutional declarator is incompetent as there are no rights which were violated.

Responding to the point *in limine*, Mr. Linjesa insisted that this court does have powers to grant declarator and hence the relief is not incompetent. He further argued that the decisions of the Labour Court will be automatically set aside if the present relief is granted.

In the case of *Streamsleigh Investments (Pvt) Ltd* v *Autoband Investments (Pvt) Ltd supra*, the court discouraged the use of declaratory relief in challenging the decisions of the lower courts. The court remarked as follows:

> "I am extremely concerned with the approach being advocated by the applicant in this case. It wants this court to grant a declaratory order to subvert a process that started in the lower court in which it, actively participated and lost. I see that as nothing but a stout effort to indulge in forum shopping and the High Court must not be used to subvert court process emanating from the lower court for no good cause. I agree with the forceful submissions made by Adv *Uriri* that in these circumstances a declaratory order would not be competent."

In *casu*, the Applicant is challenging the decisions of the labour Court through the present application. The decisions of the lower court can only be challenged through review or appeal proceedings. The present application is neither review nor appeal. This is inappropriate in the circumstances. Evidently, the effect of the relief is to set aside the decisions of the Labour Court. This is incompetent.

The court is encouraged to conscientiously examine the effect of the relief prayed for. If the relief sought may see the setting aside of the decision of a competent authority, the court must decline to grant such a declaratory prayer. In the case of *Chingombe and Another* v *City of Harare and others*[2], the Supreme Court held that:

> "The fact that they clothed the application as a declarator is not material. The result they sought is what guides the court."

The third Respondent argued that it does not allocate matters to the Judges. It further insisted that it performs administrative functions of judicial functions. I do agree with this submission. Demonstrably, the third Respondent is a creature of statute which is founded in terms of the Judicial Service Act [*Chapter 7:18*]. It operates within the four corners of the

[2] SC177-20.

enabling statute. The functions of the third Respondent are established in terms of s 5 of the Judicial Service Act [*Chapter 7:18*], which provides as follows:

> "(1) Subject to the Constitution, this Act or any other enactment, the Commission shall have the following functions
>
> (a)fix by means of service regulations conditions of service for its members; and
>
> (b)administering and supervising the Judicial Service; and
>
> (c)appointing persons to the Judicial Service, whether as permanent members on pensionable conditions of service or on contract or otherwise, assigning and promoting them to offices, posts and grades in the Judicial Service, and fixing their conditions of service; and
>
> (d)inquiring into and dealing with complaints or grievances made by or against members of the Judicial Service; and
>
> (e)exercising disciplinary powers in relation to members of the Judicial Service; and
>
> (f)exercising any other functions that may be imposed or conferred upon it in terms of this Act or any other enactment;
>
> (2) The Commission shall exercise its functions under this Act so as to ensure the well-being and good administration of the Judicial Service and its maintenance in a high state of efficiency."

In the circumstances, a relief seeking to compel the third Respondent to reallocate the matters to a different Judge is unambiguously incompetent. This relief is not supported by law.

The Applicant prayed for remittal of the matters to the Labour Court. Remitting the matters to the Labour Court for hearing *de novo* is obviously incompetent. The Labour Court finalised the matters which were before it. The Labour Court is now *functus officio*. The Labour Court cannot be ordered to rehear the matter in the absence of a proper application for review. On this basis, the relief sought is incompetent.

This court's powers to grant declaratory orders is set up in terms of s 14 of the High Court Act which provides that:

> "The High Court may, in its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination."

The legislature did not intend to clothe this court with review powers at the time of promulgating Section 14 of the High Court Act. It is a mischief to assume that s 14 of the High Court Act does empower this court with review powers. Sections 26-29 confer review powers upon this court. The Applicant is not seeking review of the decisions of the Labour Court. For this reason, the relief sought is incompetent.

The Applicant also seeks the relief that this court must declare that his rights established in terms of ss 56 and 69 have been violated by the second and third Respondents. If the Applicant feels that constitutional issues arose at the time when the Labour Court was hearing his matters, he ought to have pursued a remedy established in terms of s 175(4) of the Constitution, which is as follows:

> "(4) If a constitutional matter arises in any proceedings before a court, the person presiding over that court may and, if so requested by any party to the proceedings, must refer the matter to the Constitutional Court unless he or she considers the request is merely frivolous or vexatious."

In *casu*, the Applicant ought to have sought leave of the Labour Court for referral of the constitutional issues to the Constitutional Court. By referring such constitutional issues to this court, this is patently incompetent. The Constitutional Court is the correct court which ought to have been approached by the Applicant in terms of s 175(4) of the Constitution if the Applicant is of the view that constitutional issues arose at the time of hearing of the matters before the Labour Court.

In the circumstances, the Applicant is seeking to abuse the court process. The present application is manifestly unmerited. It ought to be struck from the roll. This will give the Applicant an opportunity to approach the competent court via the correct avenue. A dismissal will put the Applicant out of court.

Having concluded that the relief sought is incompetent, determining the rest of the points *in limine* raised by the first and third Respondents is unnecessary at this stage. Proceeding to resolve such outstanding points *in limine* can only be defined as an academic exercise.

The Applicant was warned through the opposing affidavits filed by the first and third Respondents, but chose to ignore the warning. There is need to demonstrate the court's displeasure by ordering the Applicant to bear costs. The relief sought by the Applicant in the present application is palpably defective in many respects. In the result, it is ordered as follows:

A. The point *in limine* raised by the first and third Respondents that the relief sought is incompetent be and is hereby upheld.

B. The application be and is hereby struck from the roll with costs on an ordinary scale.

**DEME J:..……**

**HOVE J:…… I agree.**

*Mawere Sibanda Commercial Lawyers*, First Respondent's Legal Practitioners.
*Civil Division of the Attorney-General's office*, Third Respondent's Legal Practitioners.